

SENATE No. 1090

The Commonwealth of Massachusetts

PRESENTED BY:

Ryan C. Fattman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to dangerousness hearings.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/27/2025</i>

SENATE No. 1090

By Mr. Fattman, a petition (accompanied by bill, Senate, No. 1090) of Ryan C. Fattman and Bruce E. Tarr for legislation relative to dangerousness hearings. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 962 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to dangerousness hearings.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 58A of chapter 276, as appearing in the 2022 Official Edition, is hereby amended
2 by inserting after subsection (8) the following subsection:-

3 (9) If an individual is charged for the second time with an offense listed in subsection (1)
4 the commonwealth shall move, based on dangerousness, for an order of pretrial detention under
5 subsection (3) or release on conditions under subsection (2).